SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER:
2. CONTRACT NUMBER:
3. AWARD/EFFECTIVE DATE:
4. ORDER NUMBER:
5. SOLICITATION NUMBER: W911SD26QA0710001
6. SOLICITATION ISSUE DATE: 22 APR 2026

7. FOR SOLICITATION INFORMATION CALL:
a. NAME: LAKENIA BROWN
b. TELEPHONE NUMBER *(No collect calls)*: (520) 687-8138

8. OFFER DUE DATE/LOCAL TIME: 08 MAY 2026 04:00 PM

9. ISSUED BY — CODE: W911SD

W6QM MICC-WEST POINT
KO DIRECTORATE OF CONTRACTIN, MADC 681 HARDEE PLACE
WEST POINT, NY 10996-1514
UNITED STATES
LAKENIA BROWN, EMAIL: LAKENIA.M.BROWN.CIV@ARMY.MIL TELEPHONE: (520) 687-8138

10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR:
- ☒ SMALL BUSINESS
- ☐ HUBZONE SMALL BUSINESS
- ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB)
- ☐ WOMEN-OWNED SMALL BUSINESS (WOSB)
- ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB)
- ☐ 8(A)

NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 532490
SIZE STANDARD: USD 40,000,000.00

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE

12. DISCOUNT TERMS

13a. ☐ THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)

13b. RATING

14. METHOD OF SOLICITATION ☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO — CODE:
SEE SCHEDULE

16. ADMINISTERED BY — CODE:

17a. CONTRACTOR/OFFEROR — CODE: — FACILITY CODE:

TELEPHONE NUMBER

18a. PAYMENT WILL BE MADE BY — CODE:

17b. ☐ CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	SEE CONTINUATION				
	(Use Reverse and/or Attach Additional Sheets as Necessary)				

25. ACCOUNTING AND APPROPRIATION DATA
SEE CONTINUATION

26. TOTAL AWARD AMOUNT *(For Government Use Only)*

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED

☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN ______ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REFERENCE ____________ OFFER DATED ____________. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*

30b. NAME AND TITLE OF SIGNER *(Type or print)*

30c. DATE SIGNED

31b. NAME OF CONTRACTING OFFICER *(Type or print)*

31c. DATE SIGNED

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Temporary Boiler Rental - Bldg. 604 Contractor shall install, inspect, and test the installation and operation of the transportable steam boiler for start of full operational service. Pricing Arrangement: Firm Fixed Price	1	Months		
0002	Temporary Boiler Rental - Bldg. 845 Contractor shall install, inspect, and test the installation and operation of the transportable steam boiler for start of full operational service. Pricing Arrangement: Firm Fixed Price	1	Months		

Continuation of Description

Requirements

Temporary Rental Boilers

0001
Product Service Code : W085
North American Industry Classification System (NAICS) : 532490

0002
Product Service Code : W085
North American Industry Classification System (NAICS) : 532490

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: Inspect/Accept DoDAAC: W16BCU CountryCode: USA W6BM USAG WEST POINT DPW FUEL AND PROPANE CONTRACT, BLDG 667B RUGER RD WEST POINT, NY 10996-1592 UNITED STATES
0002	Inspection and Acceptance Location Both Destination Instructions: Inspect/Accept DoDAAC: W16BCU CountryCode: USA W6BM USAG WEST POINT DPW FUEL AND PROPANE CONTRACT, BLDG 667B RUGER RD WEST POINT, NY 10996-1592 UNITED STATES

Continuation of Deliveries or Performance

0001	**Quantity** 1 Months **Address and POC** Service Performance Site DoDAAC: W16BCU **Period of Performance** From 22 May 2026 To 20 Jun 2026
0002	**Quantity** 1 Months **Address and POC** Service Performance Site DoDAAC: W16BCU **Period of Performance** From 20 Jun 2026 To 10 Jul 2026

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-3	Gratuities.	1984-04		
52.203-6	Restrictions on Subcontractor Sales to the Government.	2020-06		
52.203-6	Restrictions on Subcontractor Sales to the Government. (Alternate I)	2020-06	Alternate I	2021-11
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	2026-02		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	2026-02		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-	2026-02		

	O0038)	
52.219-8	Utilization of Small Business Concerns. (Deviation 2026-O0038)	2026-02
52.219-33	Nonmanufacturer Rule. (Deviation 2026-O0038)	2026-02
52.222-35	Equal Opportunity for Veterans. (Deviation 2026-O0038)	2026-02
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	2026-02
52.222-37	Employment Reports on Veterans. (Deviation 2026-O0038)	2026-02
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation 2026-O0038)	2026-02
52.222-41	Service Contract Labor Standards. (Deviation 2026-O0038)	2026-02
52.222-44	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment. (Deviation 2026-O0038)	2026-02
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	2026-02
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation 2026-O0038)	2026-02

52.226-5	Restrictions on Subcontracting Outside Disaster or Emergency Area.	2007-11
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05
52.229-12	Tax on Certain Foreign Procurements.	2021-02
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-3	Protest after Award. (Deviation 2026-O0038)	2026-02
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	2026-02

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower	2022-12		

	Rights.	
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	2024-05
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01
252.225-7012	Preference for Certain Domestic Commodities.	2022-04
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12
252.232-7010	Levies on Contract Payments.	2006-12
252.243-7002	Requests for Equitable Adjustment.	2022-12
252.247-7023	Transportation of Supplies by Sea.	2024-10

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective

			Date
52.219-14	Limitations on Subcontracting. (Deviation 2026-O0038)	2026-02	

Limitations on Subcontracting (Feb 2026) (Deviation 2026-O0038)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) Definition. Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that-

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) Applicability. This clause applies only to-

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;

(4) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business concerns under multiple-award contracts, as described in 8.4 and 16.5;

(5) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts, as described in 8.4 and 16.5; and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) Independent contractors. An independent contractor shall be considered a subcontractor.

(e) By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for-

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause-

[Contracting Officer check as appropriate.]

[ ] By the end of the base term of the contract and then by the end of each subsequent option period; or

[ ] By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.219-28	Postaward Small Business Program Rerepresentation. (Deviation 2026-O0038)	2026-02

Postaward Small Business Program Rerepresentation (Feb 2026) (Deviation 2026-O0038)

(a) Definitions. As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at https://www.sba.gov/document /support--table-size-standards.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it [ ] is, [ ] is not a small business concern under ____NAICS Code assigned to ____contract number.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.] The Contractor represents that it [ ] is, [ ] is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __.]

(4) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __ .]

(5) Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program. The Contractor represents that it [ ] is, [ ] is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __.]

(6) HUBZone joint venture eligible under the HUBZone Program.[Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that It [ ] is, [ ] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [____Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.222-42	Statement of Equivalent Rates for Federal Hires.	2014-05

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

(End of clause)

52.226-4	Notice of Disaster or Emergency Area Set-Aside.	2007-11

Notice of Disaster or Emergency Area set-Aside (Nov 2007)

(a) Set-aside area. Offers are solicited only from businesses residing or primarily doing business in ____________[Contracting Officer to fill in with definite geographic boundaries.] Offers received from other businesses shall not be considered.

(b) This set-aside is in addition to any small business set-aside contained in this contract.

(End of clause)

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.232-7006	Wide Area WorkFlow Payment Instructions.	2023-01		

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award

Management at https://www.sam.gov; and

(2) Be registered to use WAWF at https://wawf.eb.mil/ following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at https://wawf.eb.mil/

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

____

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

2in1

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	W911SD
Issue By DoDAAC	W911SD
Admin DoDAAC	W16BCU
Inspect By DoDAAC	W16BCU
Ship To Code	_____
Ship From Code	_____
Mark For Code	_____
Service Approver (DoDAAC)	W16BCU
Service Acceptor (DoDAAC)	W16BCU
Accept at Other DoDAAC	_____
LPO DoDAAC	_____
DCAA Auditor DoDAAC	_____
Other DoDAAC(s)	_____

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

timothy.g.garbiso.civ@mail.mil

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	2026-02		
52.222-3	Convict Labor. (Deviation 2026-O0038)	2026-02		
52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0038)	2026-04		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	2026-02		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	2026-02		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	1991-12		

252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	2023-01

List of Contract Documents, Exhibits, or Attachments

RFI Response - Temporary Boiler Rental - Bldg. 756 and Bldg. 845 Installation

27 April 2026

RFI: Temporary Boiler Rental - Bldg. 756 and Bldg. 845 Installation

Questions:

1. Quantity. The SF 1449 description references "one 800hp/250psi max pressure transportable steam boiler," while the Scope of Work attachment references "two 800hp/250psi max pressure transportable steam boilers." CLIN 0001 is structured as a single line item at quantity 1 month. Please confirm the total number of boilers required and whether they should be priced under a single CLIN or under separate CLINs.

Quantity is two boilers, one for bldg. 604 and one for bldg. 845. CLINs decided by contracting.

Separate CLINs have been established to clearly delineate and capture the service requirements associated with each building. See amendment 01.

2. Building references. The Scope of Work title references "Bldgs. 604 & 845," paragraph 2 references "Bldg. 604," and the Description of Work references "Bldg. 756 courtyard" and "Bldg. 845." Please confirm the correct building number(s) for the installation location(s).

Bldg. 756 courtyard is where temp boiler will be temporarily placed as this temp boiler is replacing bldg. 604 power plant steam boilers for steam supply to cadet area.

3. Period of performance. The Scope of Work indicates that the Bldg.756 (or 604) boiler runs May 22 to June 21, 2026, but states the Bldg.845 dates are "TBD in summer 2026." Please provide the period of performance for the second boiler or confirm whether bidders should price the second boiler as a one-month rental with timing to be coordinated post-award.

Bldg. 604 temp boiler - in operation by May 22nd - June 20th, 2026.

Bldg. 845 temp boiler - in operation by June 20th - July 10th, 2026.

DPW, CONSTRUCTION, ESTIMATING & CONTRACT SERVICES BRANCH

4th Floor Bldg. 667A

West Point N.Y. 10996

Subject: Scope of Work

Contract name: Bldgs. 604 & 845 Temporary Boilers - Summer 2026

IJO: UE-25319-5J

Project Location: Bldg. 756 Bradley barracks courtyard & Bldg. 845 parking lot

Date: 27 January 2026

Scope:

Contractor to provide all labor, material, equipment, and supervision in accordance with all applicable codes and specifications to the following locations at USMA West Point, NY 10996:

1) Supply, install, and test operate two 800hp/250psi max pressure transportable steam boilers with natural gas connections, on-call service, and chemical treatment for the duration of boiler operation.

2) Bldg. 604 temporary steam boiler must be delivered and installed and fully operational from May 22, 2026 - June 20, 2026, for one month.

1) Bldg. 845 temporary steam boiler must be delivered and installed and fully operational on dates June 20, 2026 - July 10, 2026 for one month.

***Temp boilers are one-month rentals each at different dates during steam shutdown of summer 2026.**

Description of Work:

Contractor shall install, inspect, and test the installation and operation of the transportable steam boiler no later than May 22nd for start of full operational service. On June 21st, the contractor will disconnect and demobilize the temporary boiler and all associated material and equipment.

1) Supply and install one transportable steam boiler to Bldg. 756 courtyard, and have all associated work needed for installation completed and the boiler ready and in operation by May 22nd. The existing building power and disconnect is 200-amp, 230/480 VAC. The contractor must supply and install all electrical connections from boiler equipment to building power, supply and install all steam piping, condensate piping, and fittings as necessary for a complete installation from temp boiler to building connections for full operational condition. Supply and install all temporary electrical cables and appurtenances needed to connect boiler to the supplied electrical power panel. The designated site location and attachment locations (electrical disconnect, water connections, piping, etc.) to existing building systems will be shown at site visit. Supply and install natural gas piping, fittings, and regulator needed for connections from boiler to building gas supply. The contractor shall have a qualified boiler operator, laborer, electrician, pipe fitters (steam) for this project at the site visit to review, test, and operate this boiler at designated location and determine the exact details (specific location, attachment details, piping length, electrical, etc.). The contractor shall have a qualified electrician for all the electrical cables, and connections. The government PM will be notified when the boiler is ready to be connected, and PM will then notify Electric shop for termination.

2) Supply and install one transportable steam boiler to Bldg. 845 Power plant, and have all associated work needed for installation completed and the boiler ready and in operation by May 22nd. The contractor must supply and install temporary natural gas/fuel generator all electrical connections from boiler equipment to building power, supply and install all steam piping, condensate piping, and fittings as necessary for a complete installation from temp boiler to building connections for full operational condition. Supply and install all temporary electrical cables and appurtenances needed to connect boiler to the supplied electrical power panel. The designated site location and attachment locations (electrical disconnect, water connections, piping, etc.) to existing building systems will be shown at site visit. Supply and install natural gas piping, fittings, and regulator needed for connections from boiler to building gas supply. The contractor shall have a qualified boiler operator, laborer, electrician, pipe fitters (steam) for this project at the site visit to review, test, and operate this boiler at designated location and determine the exact details (specific location, attachment details, piping length, electrical, etc.). The contractor shall have a qualified electrician for all the electrical cables, and connections. The government PM will be notified when the boiler is ready to be connected, and PM will then notify Electric shop for termination.

3) Supply all labor and materials required to disconnect existing building piping for temporary boiler hook-up. Supply all labor and materials required to reconnect all piping after temporary boiler are removed. All existing system components, electrical connections, structures, roadways, etc. shall be returned to their original existing conditions upon completion of this work for acceptable closing.

Specific Requirements:

a) All work shall be performed in accordance with applicable federal, state, local, and USMA requirements laws and regulations.

b) Supply material needed to support temporary boiler at site locations; Plywood, chalk, etc. shall be installed under and chalked around tires and front trailer supports to protect the surface underneath boiler trailer.

c) Remove building louvers as necessary to run piping and electrical cables into building. Install temporary enclosures around temporary piping to cover the opening where louvers were removed.

d) Contractor must install carbon steel piping to connect boiler to building connections and welding of branch connections, fittings, and flanges shall meet all requirements of the ASME Boiler and Pressure Vessel Code regulations, and OSHA standards. Newly installed steam and condensate piping shall be IAW: ASTM A234 Pipe Fittings of carbon steel for moderate and high temperature service and ASME B36.1 Standardization of welded and seamless steel pipe for high and low temperatures and pressures.

e) Supply all supervision, labor, equipment, and materials needed for installation and removal of temporary boiler.

f) In addition to the work described above, the contractor shall also provide on-call maintenance and repair service for their supplied equipment during the periods of operation as described above. Contractor shall respond within two hours of placed call. After normal work hours, the contractor shall respond within four hours of placed call. The COR will initiate these on-call maintenance and repair services. There will be no additional payment for repair parts or materials needed as these are included in the cost of operational chiller units provided.

Submittals:

The contractor shall provide the following submittals as a minimum for review and approval. The government will review each delivery:

1) Contractor bid/proposal:

Work plan for the execution of the design, procurement, installation, and testing of the work. This plan shall describe how they will be executed and how it will be accomplished to not interfere with the ongoing operations of the affected buildings and facilities.

Coordination / Schedule:

Contractor shall attend a site visit/existing conditions survey as scheduled by the COR. The contractor shall:

1) Coordinate the date and time of the work with COR within 5 days of Notice to Proceed.

2) Complete material, equipment, delivery, and installation by May 22nd.

Quality Control:

The contractor shall develop a Quality Control Plan to ensure that the requirements of the contract are provided as specified. This plan shall be submitted for review and approval prior to executing any design or construction work. The plan shall contain the minimum of the following:

1) An inspection program covering all the services to be performed under this contract.

2) A description of the process to be used for verifying compliance with the contract requirements including non-destructive examinations of welds.

3) The methodology to be used for identifying deficiencies in the quality of services performed before the level of performance has an adverse impact on the execution of the project.

4) A description of the daily quality control reports to be generated during the performance of the work including photographs of the work.

5) Qualifications of the QA/QC representative.

Health, Safety and Environmental Protection:

The contractor shall develop and submit for review and approval their Health and Safety Plan along with their Environmental Protection Plan for this work. These plans shall cover the being performed including fall protection. These plans shall comply with all federal, state, local, and USMA requirements, laws, and regulations.

Reports / Records:

Within 10 days of completion of construction, the contractor shall submit all records of the work including but not limited to quality inspection reports (including photographs), test reports, and manufacturer's documentation.

Bldg. 604 temp boiler - in operation by May 22nd - June 20th, 2026.

Bldg. 845 temp boiler - in operation by June 20th - July 10th, 2026.

*** END OF NARRATIVE ***

Identifier	Document Name	Document Description	Reference Identifier	Date	Line Item	Page Numbers	Document Type	Provided Under Separate Cover
0001	Wage Determination	Wage Determination		17 Apr 2026		1	Attachment	No

0002	RFIs	Supporting Technical Documentation		27 Apr 2026		1	Attachment	No

Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	2026-02		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		

252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	2023-06		

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05		

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at https://www.sam.gov for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [ ] will [ ] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

1. These instructions prescribe the format for the quote and describe the approach for preparation and presentation of the Quote data. They are designed to ensure that Offerors submit the required information essential to the Government's understanding and validation of quotes. Offerors are cautioned and encouraged to follow these instructions completely and carefully. Quotes shall not rephrase requirements set forth in the solicitation. Noncompliance with these instructions may be cause for rejection of the Offerors Quote. Quotes which merely offer to perform work in accordance with the solicitation or which fail to present more than a statement indicating the company's capability of compliance without elaboration will be deemed unacceptable and will not be further considered.

2. Quotes shall be submitted prior to the closing date and time identified on the SF 1449. Quotes must be submitted electronically via email to Lakenia.m.brown.civ@army.mil no later than 08 May 2026 at 4:00 PM EST. Late submissions will be handled in accordance with FAR 52.212-1.

3. All questions regarding this solicitation shall be submitted in writing via email to: lakenia.m. brown.civ@army.mil no later than 04 May 2026, 10:00 AM EST, subject line shall reference the solicitation number W911SD-26-Q-A071. Questions and Answers will be posted on sam.gov, via an amendment, without Offeror identification. Questions received after the deadline may not be answered.

4. Site Visit. The Government will hold a MANDATORY site visit. All personnel attending the site visit will convene at the Mission and Installation Contracting Command - West Point's office located on the 1st Floor, 681 Rogers Pl., West Point, NY on 01 May 2026 beginning at 10:00 AM EST. All interested firms may attend with a limit of two (2) attendees per firm. Please submit, in writing, the names of attendees to Lakenia Brown at Lakenia.m.brown.civ@army.mil by 28 April 2026.

All visitors must go to the Visitor Center, in Highland Falls, NY prior to entering West Point for a Visitor Pass. The Visitor Center is located at: 2107 New South Post Road, WestPoint, N. Y., 10996. The Visitor Center is open from 6 am. to 6 pm. Monday - Friday. Please allow an hour before the meeting to go the Visitor Center to ensure you will have a Visitor Pass.

There will be a Conference held at the beginning of the site visit to introduce the site visit objectives, ground rules, and to provide a brief overview of the project; technical questions will not be addressed during the course of the site visit. However, offerors may submit technical questions in writing following the site visit. What is said by Government personnel at the site visit is not binding. If Government responses to technical questions affect the Performance Work Statement or any other portion of the solicitation, then an amendment to the solicitation will be issued.

General Instructions

1. The Government intends to make award based on source selection procedures, as delineated in FAR Part 15.3. Offers will be evaluated using the criteria under 52.212-2 Evaluation - Commercial Items ADDENDUM. Noncompliance with the Request for Quote (RFQ) requirements may hamper the Government's ability to properly evaluate the quote and may result in elimination of the quote from further consideration for contract award. Offerors shall respond to the solicitation as posted. Offerors who alter the solicitation (except for completing appropriate "fill-in" blocks and certifications) may be considered not in compliance with the requirements of the solicitation and therefore ineligible for award.

2. The Offer. The submission of the documentation specified below will constitute the Offeror's acceptance of the terms and conditions of the RFP, concurrence with the Performance Work Statement (PWS), and the proposed contract type.

3. Period for Acceptance of Offerors. The Offeror agrees to hold the prices in its offer firm for 180 calendar days from the date specified for receipt of offers. Should the Government open discussions the acceptance period may be extended.

4. It is the Government's intention to award without discussions. Offerors are encouraged to present their best data specification sheet, and price in their initial submission.

5. These instructions prescribe the format for the quote and describe the approach for the development and presentation of quote data. These instructions are designed to ensure the submission of necessary information to provide for the understanding and comprehensive evaluation of submissions. Upon receipt of quotes and subsequent revisions the contracting office will review them for compliance with submission requirements. A Quote may be determined not in compliance with the material requirements of the solicitation when: (1) any Quote volume is not compliant with submission requirements or (2) Volume I-II content is not compliant with paragraph C, below.

6. If an Offeror believes that the requirements in these instructions contain an error, an ambiguity, omission, or are otherwise unsound, the Offeror shall immediately notify the Contract Specialist, identified above in para A.1 and A.3, in writing, with supporting rationale.

7. In accordance with FAR Subpart 4.8 (Government Contract Files), the Government will retain one copy of all unsuccessful quotes. Unless the Offeror requests otherwise, the Government will destroy extra copies of such unsuccessful quotes.

C. Quote Preparation/Content Instructions

1. Offerors quote shall provide a complete data specification sheet for each proposed temporary boiler.

a. **The specification sheet shall include, at a minimum:**

- Boiler Capacity (BTU/hr or equivalent

- Fuel type and consumption rates

-Operating pressure and temperature ranges

-Dimensions and weight of the unit

-Power requirements

-Compliance with applicable federal state, and local regulations

-Manufacturer's performance data and certification

No additional technical or management information is required. The Government reserves the right to request clarifications if the submitted data specification sheet is incomplete or unclear. Failure to provide the data specification sheet may result in the quote being considered non responsive.

b. **Price:** Offerors shall submit pricing information by completing blocks 17a, 23, 24, and 30 of the Standard Form (SF) 1449.

- Provide a Firm Fixed Price for each temporary boiler unit and other applicable charges in each specified CLIN.

- Prices shall be stated in U.S dollars and must be inclusive of total price necessary to fulfill the contract requirements.

2. Quote Format: The data specification sheet and pricing must be submitted in PDF Format. Ensure all submitted documents are clearly labeled with the Offeror's name and solicitation number.

*** END OF NARRATIVE ***

0001
Point of Contact: HEIDI MURPHY 520-718-0086

0002
Point of Contact: HEIDI MURPHY 520-718-0086

Evaluation - Commercial Products and Commercial Services

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-2	Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

[Insert evaluation factors in the relative order of importance. For requests for proposals, state: Evaluation factors other than price when combined are [significantly more important than price /approximately equal to price/significantly less important] than price. For invitations for bids, list only price and price-related factors.]

Factor 1 - Technical

Factor 2 - Price

____

____

(b) Options (if applicable). The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) Notice of award. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Evaluation - Commercial Product and Commercial Services

Addendum to Evaluation - Commercial Product and Commercial Services

Provisions that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The following provisions are incorporated into 52.212-2 as an addendum to this solicitation:

Evaluation Factors for Award

(a) Basis for Contract Award. This is a Lowest Price Technically Acceptable source selection conducted in accordance with Federal Acquisition Regulation (FAR) 13.106-2, Evaluation of quotations or offers, as supplemented by the Defense Federal Acquisition Regulation Supplement (DFARS), and the Army Federal Acquisition Regulation Supplement (AFARS). Contract shall be awarded to the contractor who is deemed responsible in accordance with the FAR, as supplemented, whose quote conforms to the solicitation's requirements (to include all stated terms, conditions, representations, certifications, and all other information required by 52.212-2 of this solicitation and is judged by an overall assessment of the evaluation factors to represent the most advantageous to the Government by exceeding the minimum requirements to meet the Lowest Price Technically Acceptable to the Government.

(b) Award for All of the Work. The Government intends to award one (1) Firm Fixed Price (FFP) contract as a result of this solicitation. Quotes received for less than the stated number of items listed in the Price Schedule will be considered ineligible for award. As set forth in FAR 52.212-1 (g), the Government intends to evaluate quotes and award a contract without discussions with contractors. Therefore, the contractor's initial quote should contain the contractor's best terms from a price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary.

(c) Evaluation Criteria. Product Data Specification sheet must (MEET OR EXCEED) the minimum technical specifications, shall be evaluated under two (2) evaluating factors: Technical, and Price.

Factor 1 - Technical. Product Data Specification sheet must (MEET OR EXCEED) the minimum technical specifications required in accordance with the scope. Technical submissions will be rated Acceptable/Unacceptable.

Table 1. Technical Rating (s) Acceptable/Unacceptable Ratings

Rating	**Description**

Acceptable	Product Data Specification sheet clearly meets the minimum specification /requirements of the solicitation
Unacceptable	Product Data Specification sheet does NOT clearly meet the minimum specification/requirements of the solicitation

Factor 2 - Price. Price will not be scored or rated. Evaluation of price will be performed using one or more of the price analysis techniques in FAR 12. Through these techniques the Government will determine whether prices are reasonable.

*** END OF NARRATIVE ***

Addendum to Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	2024-09		
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	2026-02		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.219-1	Small Business Program Representations. (Deviation 2026-O0038)	2026-02		

Small Business Program Representations (Feb 2026) (Deviation 2026-O0038)

(a) Definitions. As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

HUBZone small business concern means a small business concern that meets the requirements described in 13 CFR 126.200, is certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) (13 CFR 126.103).

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern means a small business concern that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraph (1) of this definition.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) The North American Industry Classification System (NAICS) code for this acquisition is ____ [insert NAICS code].

(2) The small business size standard is ____[insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (i.e., nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) Representations.

(1) The offeror represents as part of its offer that-

(i) it [ ] is, [ ] is not a small business concern; or

(ii) It [ ] is, [ ] is not a small business joint venture that complies with the requirements of 13 CFR

121.103(h) and 13 CFR 125.8(a) and (b). [____________The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it [ ] is, [ ] is not a women-owned small disadvantage business concern.

(3) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The offeror represents as part of its offer that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(4) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents as part of its offer that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(5) SDVOSB joint venture eligible under the SDVOSB Program. [Complete only if the offeror is certified as a SDVOSB concern]. The offeror represents as part of its offer that it [ ] is, [ ] is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____The offeror shall enter the name and unique entity identifier of each party to the joint venture:__.]

(6) HUBZone joint venture eligible under the HUBZone Program. [Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that it [ ] is, [ ] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

(d) Notice. Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, will be-

(1) Punished by imposition of fine, imprisonment, or both;

(2) Subject to administrative remedies, including suspension and debarment; and

(3) Ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

52.226-3	Disaster or Emergency Area Representation.	2007-11

Disaster or Emergency Area Representation (Nov 2007)

(a) Set-aside area. The area covered in this contract is: ____________[Contracting Officer to fill in with definite geographic boundaries.]

(b) Representations. The offeror represents that it [ ] does [ ] does not reside or primarily do business in the designated set-aside area.

(c) An offeror is considered to be residing or primarily doing business in the set-aside area if, during the last twelve months-

(1) The offeror had its main operating office in the area; and

(2) That office generated at least half of the offeror's gross revenues and employed at least half of the offeror's permanent employees.

(d) If the offeror does not meet the criteria in paragraph (c) of this provision, factors to be considered in determining whether an offeror resides or primarily does business in the set-aside area include-

(1) Physical location(s) of the offeror's permanent office(s) and date any office in the set-aside area(s) was established;

(2) Current state licenses;

(3) Record of past work in the set-aside area(s) (e.g., how much and for how long);

(4) Contractual history the offeror has had with subcontractors and/or suppliers in the set-aside area;

(5) Percentage of the offeror's gross revenues attributable to work performed in the set-aside area;

(6) Number of permanent employees the offeror employs in the set-aside area;

(7) Membership in local and state organizations in the set-aside area; and

(8) Other evidence that establishes the offeror resides or primarily does business in the set-aside area. For example, sole proprietorships may submit utility bills and bank statements.

(e) If the offeror represents it resides or primarily does business in the set-aside area, the offeror shall furnish documentation to support its representation if requested by the Contracting Officer. The solicitation may require the offeror to submit with its offer documentation to support the representation.

(End of provision)

52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	2020-06

Tax on Certain Foreign Procurements-Notice and Representation (Jun 2020)

(a) Definitions. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It [ ] is [ ] is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 [ ] a full exemption, or [ ] partial or no exemption [Offeror must select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to https://www.irs.gov/help/tax-law-questions.

(End of provision)